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August 31, 2026

VIA ELECTRONIC MAIL ONLY

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Counsel for Defendant Amazon.com Services, LLC

Re: **Opening Demand to Settle as to Amazon.com Services, LLC**
Newanforbi v. Amazon.com Services, LLC, et al. — Alameda County Superior Court, Case No. 26CV201554
California Fair Chance Act (Gov. Code, § 12952); Unlawful Use of Registry Information for Employment (Pen. Code, § 290.46, subd. (j)(2)(E))
Amazon Reference No. Y94611404 | Fremont FC, 44051 Osgood Rd. | **Demand: $250,000.00 (Amazon only)**

Dear Mr. Frederick:

This is my opening demand to settle as to Amazon.com Services, LLC. It is directed to Amazon alone. It does not resolve, and is not offset by, any claim against Accurate Background LLC, which has received its own demand today.

I. WHERE THE CASE STANDS

The Complaint was e-filed July 28, 2026 and accepted July 29 as Case No. 26CV201554, assigned to the Honorable Jamilah Jefferson, Department 520, Hayward Hall of Justice. Both defendants were personally served July 31, 2026. The first-paper filing fee has been paid. Notices of Amount of Punitive Damages Sought under Code of Civil Procedure section

425.115 were filed and accepted August 6, 2026: $250,000.00 as to Amazon and $100,000.00 as to Accurate Background. You appeared for Amazon on August 24, 2026. A case management conference is set for January 6, 2027. Amazon's responsive pleading is due today, and by separate letter of today's date I have offered to extend that date to September 14, 2026.

II. AMAZON'S OWN RECORD

Nothing below depends on my recollection. Every item is an Amazon e-mail, an Amazon text message, or an Amazon screen.

- **July 3, 2026, 2:09 p.m.** "Congratulations on Your Amazon Offer!" — a conditional offer for XL Warehouse Associate at the Fremont fulfillment center, 44051 Osgood Road, at $21.50 to $24.00 per hour, expressly conditioned on "successful completion of your background check, drug test, and all pre-hire activities," with paid training set for July 28–29 and August 4–5, 2026.
- **July 4 and July 7, 2026.** I completed the Form I-9 online and attended the on-site pre-hire appointment at the Fremont recruiting office; Amazon confirmed completion at 9:20 a.m. Its Simple Hire checklist showed the drug test and I-9 complete and the background check pending.
- **July 7, 2026, 9:22 a.m.** Amazon's screening vendor, Accurate Background LLC, texted from shortcode 45996 that "Amazon has requested a background check on your behalf," and the same day asked me to confirm my Social Security number, prior names, address history, and date of birth as "an urgent matter."
- **July 8, 2026.** Amazon texted that at this site background checks "are usually returned 5 days after they are submitted."
- **July 12, 2026.** "Your application with Amazon is still in progress."
- **July 17, 2026.** "We are still waiting for your background check results and sincerely apologize for the delay. These background checks are processed through a third-party vendor."
- **July 27, 2026, 3:23 p.m.** Twenty days after submission, the checklist still read "Pending" — one of six onboarding activities complete — and the confirmed training shift had been replaced with "You do not have a shift selected — Please select a new shift." The training was to begin the next day.
- **Then nothing.** No individualized assessment. No preliminary decision. No copy of any report. No five-day window to respond. No final decision. No pre-adverse action notice

and no adverse action notice, to this day.

III. THE FAIR CHANCE ACT — THE CLAIM AMAZON HAS SEEN BEFORE

Government Code section 12952, subdivision (c), sets out what an employer must do before it denies an applicant a position because of criminal history after a conditional offer: conduct an individualized assessment of whether the history has a direct and adverse relationship with the specific duties of the job, considering the nature and gravity of the offense, the time that has passed, and the nature of the job sought; give written notice of a preliminary decision identifying the disqualifying item, with a copy of the report and a period of at least five business days to respond; consider anything the applicant submits; and give written notice of the final decision. Amazon did none of it.

I want to be precise about the shape of this claim, because it is the strongest thing in the case and I do not want it confused with the registry theory. Amazon did not deny me in a procedurally defective way. Amazon never denied me in writing at all. It let a conditional offer with a locked training schedule dissolve into a checklist message while the screening sat open past four times its own stated turnaround. That is worse than a defective denial, not better: it left me with no disqualifying item identified, nothing to respond to, no five days in which to respond, and no record to challenge. The statute exists precisely to prevent an applicant from being disposed of that way.

You will recognize the claim. In *Lerma v. Amazon.com Services, LLC, et al.*, No. 8:22-cv-01727 (C.D. Cal.) — where you appeared for Amazon — the Fair Chance Act count was the one claim neither defendant moved against. It survived both motions to dismiss untouched, Amazon answered it on August 23, 2023, and the case resolved by settlement a month later. Four years on, the same Simple Hire pipeline produced the same gap with me: no individualized assessment step appears anywhere in it.

IV. THE REGISTRY CLAIM, AND WHY THE VENDOR IS NOT A SHIELD

Penal Code section 290.46, subdivision (j)(2)(E), categorically bars the use of registry information for employment purposes. No exception reaches a warehouse associate position. The prohibition applies to Amazon as the hiring employer whether the information is accessed directly or obtained through a screening vendor, and subdivision (j)(4)(A) makes the user liable for actual damages, an amount up to three times actual damages and not less than $250, attorney's fees, and exemplary damages or a civil penalty not exceeding $25,000. Amazon selected Accurate Background, ordered the screening, and set the criteria against which its output was measured. Its own July 17 e-mail attributes the delay to “a third-party vendor.” A vendor Amazon chose and instructed is not a shield; it is an agent.

I will be straight with you about the limits of this count, because you already know them. In *Lerma*, Judge Slaughter dismissed the Megan's Law claim on May 26, 2023 (Dkt. 36) because Accurate Background's own report showed its National Sex Offender Database search returned "no record found" and the disqualifying data had come from ordinary criminal court records. I do not claim that anyone settled that theory; nobody did. I have not yet seen the report on my own screening, and I say so rather than pretend otherwise — which is why Section V asks Amazon to put it in front of both of us now. Two features of this case are not shared with *Lerma*: this is a state-court action, so the federal equitable-standing rule of *Sonner v. Premier Nutrition Corp.* (9th Cir. 2020) 971 F.3d 834 that defeated the *Lerma* unfair competition claim has no application; and my criminal-record searches come back clear, so there is no decade-old conviction standing between the registry and the outcome.

The remaining counts — invasion of privacy under article I, section 1, unfair competition under Business and Professions Code section 17200 with its restitution and injunctive remedies, and intentional infliction of emotional distress — travel with the above and I will not belabor them here.

V. AN EARLY EXCHANGE I AM ASKING FOR VOLUNTARILY

I am asking Amazon to produce four things now, before either of us spends money on motion practice. I am not dressing this up as a statutory demand: Civil Code sections 1786.10 and 1786.22 and 15 U.S.C. section 1681g run against the consumer reporting agency, not against the user of the report, and I have served that request on Accurate Background today. As to Amazon this is a voluntary request, and I make it because it cuts in both directions.

- The results Accurate Background returned to Amazon on screening Y94611404, and any status, flag, hold, escalation, or adjudication code Amazon received or applied.
- The certification Amazon provided under 15 U.S.C. section 1681b(b)(1) in connection with that screening.
- The individualized-assessment record for my application, if one exists.
- The Simple Hire record showing when, by whom, and on what basis the confirmed July 28–29 and August 4–5 training assignment was removed.

If there is an individualized assessment in that file, produce it and the Fair Chance Act claim narrows sharply, which is worth something to Amazon today. If there is not, its absence is the claim. Either way we would both be valuing this case against the same documents instead of against our respective assumptions.

VI. THE DEMAND

Settlement payment: $250,000.00 (Two Hundred Fifty Thousand U.S. Dollars), Amazon.com Services, LLC only, inclusive of all damages, statutory penalties, costs, and fees asserted against Amazon in this action.

- Payable by check or electronic transfer; payee details and payment instructions to follow upon acceptance.
- If Amazon would prefer it, I am willing to discuss reinstatement to the XL Warehouse Associate position or an equivalent role at the Fremont facility in lieu of a portion of the payment. I applied because I wanted the job.
- Written confirmation that Amazon's Simple Hire process for California positions includes a documented individualized assessment, and the written preliminary and final decision notices Government Code section 12952 requires, before a conditional offer is withdrawn on the basis of a background check.
- Written confirmation that Amazon has instructed its background-screening vendors that California Sex Offender Registry information is not to be searched, reported, flagged, or otherwise used in connection with screenings ordered for California positions.
- Correction of Amazon's records to reflect that I am eligible for rehire, and a commitment that any future employer or agency inquiry about this application will be answered with application dates and eligible-for-rehire status only.
- Confidentiality of the settlement amount only. The fact of settlement and the non-monetary terms may be disclosed. I will not agree to a non-disparagement clause, and I will not sign a release broader than the claims arising from the July 2026 application and screening.
- The release runs to Amazon.com Services, LLC and its officers, employees, and affiliates only. It does not extend to Accurate Background LLC, and my claims against Accurate Background are expressly preserved and not offset by any payment here.

VII. HOW I GET TO THE NUMBER

I would rather show you the arithmetic, including the parts that do not favor me, than have you assume the figure was picked out of the air.

- **Lost earnings are modest and I will not inflate them.** The position was seasonal and part-time — 19 hours per week at $21.50 to $24.00 per hour, roughly $408.50 per week at the bottom of the range. Wage loss is not what drives this claim and I do not pretend it is.

- **Fair Chance Act.** Section 12952 is enforced through the Fair Employment and Housing Act, which carries compensatory damages, injunctive relief, and fee shifting to a prevailing plaintiff. This is the count that does not depend on what the background report said.
- **Penal Code section 290.46, subdivision (j)(4)(A):** actual damages, an amount up to three times actual damages and not less than $250, attorney's fees, and exemplary damages or a civil penalty up to $25,000.
- **Business and Professions Code section 17200:** restitution under section 17203 and injunctive relief reaching the hiring practice itself.
- **General damages.** This is the sixth time in my portfolio of matters that a registry-keyed screening has cost me a position. The cumulative effect of that is the substance of the harm here, and it is what a jury will be asked to value.
- **Punitive exposure.** The section 425.115 notice as to Amazon is $250,000.00, filed and accepted August 6, 2026. Under Civil Code section 3294 a defendant's financial condition is part of what a jury weighs, and Amazon's is not a secret.
- **The cost of defending it.** The principal claims carry fee shifting, and I am seeking contingency counsel. A resolution now is a resolution before that exposure begins to accrue.

The figure matches the punitive amount already noticed as to Amazon. That is deliberate — I would rather the number have a stated basis on the file than be a round figure I cannot explain. It is still an opening figure, I do not expect to be paid it on the first exchange, and I will negotiate in good faith against a serious counter-offer.

VIII. RESPONSE

Please respond in writing to bnn.cdl@gmail.com on or before **5:00 p.m. Pacific Time on September 11, 2026** — three days before the extended responsive-pleading date — with an acceptance, a good-faith counter-offer, or a request to schedule a call. I am available by telephone at any time, and if it would move matters forward I am willing to consider an early mediation. If Amazon and Accurate Background would like to discuss a global resolution, I will provide a global figure on request; it will be its own number and will not be assembled by dividing this demand between the two defendants.

Settlement discussions do not extend any deadline. The only extension on offer is the fourteen-day extension in my separate letter of today's date, which must be accepted today.

IX. PROTECTION AND RESERVATION OF RIGHTS

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in it limits my right to introduce the underlying documentary evidence at trial. Nothing in it waives, releases, or limits any claim, right, or remedy, all of which are expressly reserved. This letter is not an offer to settle for any amount less than that stated, nor an admission of fact, law, or comparative fault.

I look forward to hearing from you.

Very truly yours,



Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): andrew.frederick@morganlewis.com; file (Newanforbi v. Amazon.com Services, LLC, et al., Alameda Sup. Ct. No. 26CV201554)